

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

WAN HAI LINES, LTD. AND WAN HAI LINES (USA) LTD. -
POSSIBLE VIOLATIONS OF 46 U.S.C. § 41102(C)

DOCKET NO. 21-16

Served: March 7, 2022

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge.*

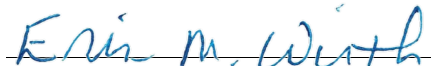
ORDER REGARDING ORAL HEARING

On March 2, 2022, the parties filed a second joint status report (“JSR 2”). The parties state that they have met twice to discuss settlement, most discovery deadlines have been met, and that deposition dates have been discussed.

Regarding the necessity for an oral hearing, the Bureau of Enforcement (“BOE”) “does not oppose an oral hearing and leaves the necessity of such a hearing with the discretion of the court.” JSR 2 at 1. If an oral hearing is held, BOE would likely call no more than eight witnesses. JSR 2 at 1. Respondents have “not yet made a determination as to whether an oral hearing will be necessary or helpful” and would anticipate calling no more than six witnesses. JSR 2 at 1.

Commission hearings are usually held by means of written testimony and documentary evidence in the form of briefs and proposed findings of fact. Avoidance of Trial-Type Oral Hearings, Informal Statement of Policy, 17 S.R.R. 457 (FMC Mar. 23, 1977). If oral hearings are held, additional time is typically required to review transcripts and file briefs and proposed findings of fact after the oral testimony. *See, e.g.*, Docket No. 10-06.

Neither party has requested an oral hearing in this expedited proceeding. An oral hearing may create delays, and there appears to be no need to deviate from typical Commission hearing procedures. The parties are encouraged to continue settlement discussions and to complete discovery in an expeditious manner. The parties will not be required to file pre-hearing briefs. Rather, upon conclusion of discovery, they should ensure that briefs are filed in accordance with the scheduling order so that a timely decision can be issued.


Erin M. Wirth
Chief Administrative Law Judge